

**CHAPTER clviii.**

An Act to confirm a Provisional Order under the Private Legislation Procedure (Scotland) Act 1899 relating to Wemyss Tramways. A.D. 1913.
[15th August 1913.]

WHEREAS His Majesty's Secretary for Scotland has made the Provisional Order set forth in the schedule hereunto annexed under the provisions of the Private Legislation Procedure (Scotland) Act 1899 and it is requisite that the said Order should be confirmed by Parliament: 62 & 63 Vict.
c. 47.

Be it therefore enacted by the King's most Excellent Majesty by and with the advice and consent of the Lords Spiritual and Temporal and Commons in this present Parliament assembled and by the authority of the same as follows:—

1. The Provisional Order contained in the schedule hereunto annexed shall be and the same is hereby confirmed. Confirmation
of Order in
schedule.

2. This Act may be cited as the Wemyss Tramways Order Confirmation Act 1913. Short title.

A.D. 1913.

SCHEDULE.

WEMYSS TRAMWAYS.

Provisional Order to extend the period limited by the Wemyss Tramways (Extensions) Order 1910 for the compulsory purchase of lands and for other purposes.

WHEREAS by the Wemyss Tramways Order 1905 (in this Order called "the Order of 1905") Randolph Gordon Erskine Wemyss was authorised to construct the tramways in the county of Fife therein described :

And whereas the rights powers authorities obligations and liabilities granted and imposed by the Order of 1905 were in accordance with the provisions of that Order transferred to the Wemyss and District Tramways Company Limited (in this Order called "the Company") incorporated under the Companies Acts 1862 to 1900 on the eighth day of November one thousand nine hundred and five and the Company have constructed and are working the whole of the tramways authorised by the Order of 1905 with the exception of Tramway No. 11 :

And whereas by the Wemyss Tramways (Extensions) Order 1910 (in this Order called "the Order of 1910") the Company were authorised to construct the additional tramways and to execute the street works therein described :

And whereas the period limited by the Order of 1910 for the compulsory purchase of lands for the purposes of that Order will expire on the twenty-sixth day of July one thousand nine hundred and thirteen and it is expedient that such period should be extended as by this Order provided :

And whereas the purpose aforesaid cannot be effected without an Order of the Secretary for Scotland confirmed by Parliament under the provisions of the Private Legislation Procedure (Scotland) Act 1899 :

Now therefore in pursuance of the powers contained in the last-mentioned Act the Secretary for Scotland orders as follows:—

1. This Order may be cited as the Wemyss Tramways Order 1913 and the Order of 1905 the Order of 1910 and this Order may be cited together as the Wemyss Tramways Orders 1905 to 1913 This Order shall come into operation at the date of the passing of the Act confirming the same which date is in this Order referred to as "the commencement of this Order."

Short title
and com-
mencement
of Order.

2. The powers granted by the Order of 1910 for the compulsory purchase of lands for the purposes of that Order are hereby extended and shall continue in force and may be exercised by the Company for a period of two years from the twenty-sixth day of July one thousand nine hundred and thirteen and on the expiration of that period those powers shall cease.

Extending
period for
compulsory
purchase of
lands.

3. Paragraph (A) of the proviso to section 4 (Power to make tramways) of the Order of 1910 shall be read and construed as if the period of nine months from the commencement of this Order had been substituted for the period of twelve months after the commencement of the Order of 1910 as the period within which the county council of the county of Fife shall provide to the Company free of expense the land required for the purposes of road widening in accordance with the provisions of the said paragraph (A).

Amending
section 4 of
Order of
1910.

4. The Company shall deliver to the Registrar of Joint Stock Companies in Scotland a printed copy of the Act confirming this Order and he shall retain and register the same and if such copy is not so delivered within three months from the commencement of this Order the Company shall incur a penalty not exceeding two pounds for every day after the expiration of those three months during which the default continues and any director or manager of the Company who knowingly and wilfully authorises such default shall incur the like penalty Every penalty under this section shall be recoverable summarily.

Copy of
Order to be
registered.

There shall be paid to the Registrar by the Company on such copy being registered the like fee as is for the time

A.D. 1913. — being payable under the Companies (Consolidation) Act 1908 on registration of any document other than the memorandum or the abstract required to be filed with the Registrar by a receiver or manager or the statement required to be sent to the Registrar by the liquidator in a winding-up in England.

Provision as
to general
Tramway
Acts.

5. Nothing in this Order contained shall exempt the Company or their tramways from the provisions of any general Act relating to tramways passed before or after the commencement of this Order or from any future revision or alteration under the authority of Parliament of the maximum fares rates or charges authorised to be taken by the Company.

Costs of
Order.

6. All costs charges and expenses of and incident to the preparing for obtaining and passing of this Order and the confirming Act or otherwise in relation thereto shall be paid by the Company.

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